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Illustration by SIDDHANT JUMDE

PARLIAMENT

MONSOON FISSION

By Kaushik Deka

On August 7, delivering his maiden speech since becoming a BJP-nominated Rajya Sabha member in 2020, former Chief Justice of India Ranjan Gogoi uttered words that are likely to be remembered for who said them, as well as what was said. The basic structure of the Constitution, he declared, had a "debatable jurisprudential basis". His comments, made during the debate on the Government of National Capital Territory of Delhi (Amendment) Bill, 2023, mark the first time the doctrine of the basic structure of the Constitution has been so openly challenged, that too by a former member of the judiciary.

Though there is no mention of the term 'basic structure' anywhere in the Constitution of India, the doctrine has evolved over time as an inviolable guideline to protect and preserve the spirit of the document. The Supreme Court can declare any constitutional amendment passed by Parliament void if it is found to be in breach of the basic structure of the Constitution. The doctrine first came to prominence during the Kesavananda Bharati case in 1973.

The monsoon session was the first to be held in the new Parliament building, and despite the disruptions and protests, it saw some historically significant legislations that are likely to have far-reaching consequences for citizens—and last long in contestation.